

106	Vu vs. Pure Nails and Hair LLC 2025-01488744	1.Motion for Protective Order 2. Case Management Conference The motion is GRANTED IN PART and DENIED IN PART. The Court declines to limit first-phase discovery to Defendant Pure Nails and Hair LLC alone. Instead, under Code of Civil Procedure section 2019.020, subdivision (b), the Court sequences discovery: Plaintiff may take first-phase discovery from all five Defendants directed at the threshold single-integrated-enterprise and joint-employer questions, but issuance of <i>Belaire-West</i> notices to, and disclosure of contact information for, the non-managerial employees of the four Defendants other than Pure Nails and Hair LLC is deferred pending further evaluation of the joint-employer/integrated-enterprise discovery. I. Background Plaintiff Thuy Vu brings this putative wage-and-hour class action against five affiliated salon and spa entities — Pure Nails and Hair LLC, Meridian Spa and Salon, LLC, Crest Spa and Salon, Inc., Pure Nail Bar LLC, and Recherchela LLC — alleging that all five were her employers under direct-employer, joint-employer, and integrated-enterprise theories. The Court denied Defendants' motion for judgment on the pleadings on February 5, 2026, finding Plaintiff's allegations sufficient to allege that she was jointly employed by Defendants. Following an Informal Discovery Conference on March 6, 2026, at which no agreement was reached, the Court permitted Defendants to refile a motion for protective order, which is now before the Court. The parties have agreed in principle to the use of a <i>Belaire-West</i> opt-out notice before any employee contact information is produced. II. The Parties' Positions Defendants. Defendants seek an order "bifurcat[ing]" discovery so that the first phase is limited to Pure Nails — the one entity they concede employed Plaintiff — with discovery of the other four Defendants deferred unless and until evidence of a joint enterprise or joint employer emerges. In reply, Defendants frame the relief not as a denial of discovery but as a "common-sense and fair sequencing" authorized by Code of Civil Procedure section 2019.020, subdivision (b), which they contend <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531 expressly preserved. They argue that whether the four other entities employed Plaintiff is a disputed threshold "real party in interest" question (see <i>Hutcheson v. Superior Court</i> (2022) 74 Cal.App.5th 932, 939) that a court may manage through sequencing, and that first-phase discovery of Pure Nails' own management and employees will reach the very facts bearing on joint employment — common ownership, shared human-resources and personnel policies, centralized control, and employee pooling. Invoking the <i>Parris/CVS</i> balancing framework, Defendants contend that exposing four separate corporate entities and their entire workforces to discovery and unsolicited contact, based on an unproven joint-employer theory, is the kind of "fishing expedition" those cases guard against. They add that if first-phase
-------------------	--	--

discovery yields evidence of joint control, Plaintiff may move to compel or modify the order to reach the remaining Defendants.

Plaintiff. Plaintiff opposes, characterizing the motion as an improper "merits challenge" barred by *Williams* — an attempt to force an evidentiary showing as a condition of discovery, which puts "the cart before the horse." She asserts a due-process right to conduct pre-certification class discovery (citing *Carabini* and *Atari*) and argues that class-member contact information is routinely discoverable (citing *Pioneer Electronics*, *Belaire-West*, *Puerto*, and *Crab Addison*). Most pointedly, Plaintiff argues that Pure Nails-only discovery "would provide no information as to the Joint Defendants" and would force the Court to accept Defendants' self-serving assertions of separateness; the questions central to her theory — whether a common owner set the policies and controlled the wages, hours, and working conditions across all locations, and whether employees of one entity were required to work for another — can be answered only through discovery directed at the other Defendants. She contends this is not a "headless" class action because the Court has already found she is a member of the class she seeks to represent, distinguishing *CVS*.

Plaintiff's evidentiary objection. Plaintiff separately objects that Defendants' reply misstated the discovery record — asserting she had produced "zero documents" and "virtually no substantive response" — when she had produced 1,573 pages and substantive responses to Defendants' interrogatories, requests for admission, and requests for production on July 23, 2026; Defendants' counsel acknowledged "overlook[ing]" the production but did not correct the reply. The Court addresses the objection only to note that the sequencing question turns on the structure of discovery, not on the parties' competing characterizations of each other's diligence; the Court does not rely on Defendants' characterization of Plaintiff's production.

III. Legal Standard

Discovery methods ordinarily "may be used in any sequence," and one party's discovery "shall not operate to delay the discovery of any other party." (Code Civ. Proc., § 2019.020, subd. (a).) But "on motion and for good cause shown, the court may establish the sequence and timing of discovery for the convenience of parties and witnesses and in the interests of justice." (*Id.*, subd. (b).) The Supreme Court has confirmed that a court may alter the normal timing of discovery in the exercise of its broad discretionary powers, though it "should not do so without good reason." (*Rosemont v. Superior Court* (1964) 60 Cal.2d 709, 713–714.)

Defendants are correct that *Williams* did not forbid sequencing. *Williams* addressed a trial court's refusal to compel statewide employee contact information until the plaintiff first proved the merits of his claim; because the defendant there never filed a section 2019.020 motion, the Court had "no occasion to decide what showing might suffice to warrant a court order sequencing discovery." (*Williams v. Superior Court*, *supra*, 3 Cal.5th at p. 551.) At the same time, *Williams* reaffirmed the substantive limit that governs this motion: "to require a party to supply proof of any claims or

defenses as a condition of discovery in support of those claims or defenses is to place the cart before the horse." (*Id.* at p. 551.) The burden of justifying a limit on discovery rests on the party resisting it — here, the moving Defendants. (*Id.* at p. 541.)

The controlling gloss on sequencing in the class context is *Coriell v. Superior Court* (1974) 39 Cal.App.3d 487. *Coriell* holds that a protective order deferring liability discovery until issues of class worthiness are resolved "is appropriate" and would be "immune from attack" — but only so long as the order does not also bar discovery that is itself relevant to the threshold class-worthiness question. (*Id.* at p. 493.) The defendant bears the burden and cannot shift it to the plaintiff through a deferral order. (*Ibid.*) Finally, because first-phase discovery implicates the privacy of nonparty employees, the Court applies the *Parris* balancing test, weighing the potential for abuse of the class-action procedure against the rights and interests of the parties and absent class members. (*Parris v. Superior Court* (2003) 109 Cal.App.4th 285, 296–300; *CVS Pharmacy, Inc. v. Superior Court* (2015) 241 Cal.App.4th 300, 306.) Employee contact information is ordinarily discoverable subject to a *Belaire-West* opt-out notice. (*Williams v. Superior Court, supra*, 3 Cal.5th at pp. 538, 543–544.)

IV. Analysis

A. The sequence Defendants propose — Pure Nails only — is not permissible. Defendants' premise is that first-phase discovery confined to Pure Nails will nonetheless reveal whether the four other entities are joint employers. But the facts that establish joint employment and integrated enterprise reside primarily with the other four entities, not with Pure Nails. Whether an entity is an employer turns on its control over wages, hours, or working conditions, and the wage-order definition is framed in the alternative precisely to reach situations in which multiple entities control different aspects of the employment relationship. (*Martinez v. Combs* (2010) 49 Cal.4th 35, 64.) The integrated-enterprise inquiry likewise turns on interrelation of operations, common management, centralized control of labor relations, and common ownership or financial control — proof of which ordinarily comes from the affiliated entities' own ownership records, personnel systems, payroll practices, and management structure. (*Mathews v. Happy Valley Conference Center, Inc.* (2019) 43 Cal.App.5th 236, 248; see *Castaneda v. Ensign Group, Inc.* (2014) 229 Cal.App.4th 1015, 1024–1025.)

Confining first-phase discovery to Pure Nails would withhold precisely the discovery relevant to the threshold issue Defendants say should be decided first. That is the defect *Coriell* identifies: a sequencing order may defer merits and liability discovery, but it cannot be used to bar discovery relevant to the threshold class-worthiness (here, employer-identity) question. (*Coriell v. Superior Court, supra*, 39 Cal.App.3d at p. 493.) And because Defendants' proposal would require Plaintiff to produce evidence of joint employment — drawn from Pure Nails alone — before obtaining discovery from the entities that actually possess that evidence, it conditions discovery on a merits showing in the manner *Williams* disapproved. (*Williams v. Superior Court, supra*, 3 Cal.5th at p. 551.) To the extent the motion rests on Defendants' unproven proffer that Pure Nails

was Plaintiff's sole employer, that proffer cannot carry Defendants' burden or be assumed in order to curtail discovery. (*Coriell v. Superior Court*, *supra*, 39 Cal.App.3d at p. 493.)

B. But sequencing focused on the threshold issue is warranted. It does not follow that Plaintiff is entitled to immediate, unstructured discovery against all five Defendants and their entire workforces. Section 2019.020, subdivision (b), permits a tailored order, and there is good cause to focus the first phase on the dispositive threshold question — whether the five Defendants are a single integrated enterprise or joint employers — before opening the full range of employee-directed class and merits discovery as to the four Defendants other than Pure Nails. That focus serves the convenience of the parties and witnesses and the interests of justice: it develops the very issue on which the propriety of broader discovery depends, while deferring the most intrusive and burdensome discovery until the Court can determine whether the four other entities belong in class-wide, employee-level discovery at all. This is the phasing *Coriell* approves. (*Coriell v. Superior Court*, *supra*, 39 Cal.App.3d at p. 493.)

C. Deferring *Belaire-West* notice and contact-information disclosure for the four other Defendants' employees is an appropriate, tailored protection. The one genuinely privacy-sensitive step Defendants identify is the disclosure of, and opt-out outreach to, the rank-and-file employees of the four entities Plaintiff arguably never worked at. Under *Parris* and *CVS*, the Court must weigh the potential for abuse of the class device against the interests of those absent employees. (*Parris v. Superior Court*, *supra*, 109 Cal.App.4th at pp. 296–300; *CVS Pharmacy, Inc. v. Superior Court*, *supra*, 241 Cal.App.4th at p. 306.) Where, as here, the representative link between Plaintiff and the four other entities' workforces is itself the disputed and as-yet-unproven question, the balance supports deferring the disclosure of those employees' contact information and the issuance of *Belaire-West* notices to them until the joint-employer/integrated-enterprise issue fully explored. That limited deferral is not a categorical bar to discoverable contact information — the information remains discoverable, subject to a *Belaire-West* opt-out, if and when the threshold issue is resolved in Plaintiff's favor (*Williams v. Superior Court*, *supra*, 3 Cal.5th at pp. 543–544) — and it leaves untouched the contact information and *Belaire-West* process for Pure Nails' employees, whose employer status is undisputed. This calibrated sequence honors the discretion *Williams* preserved while withholding only the discovery that would inflict the nonparty-privacy and burden harms *Parris* and *CVS* caution against, and only until the predicate for that discovery is established.

Defendants to provide notice.